

25AVCV01047 25AVCV01047

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

DESIREE VICTORIA OLZAVA A.K.A. DESIREE OLZAVA, an individual, and NICOLAS BURGOS, an individual,

Plaintiffs,

v.

316 E. AVENUE Q-7, LLC, a Limited Liability Corporation; MARIA SALAZAR, an individual and Agent of the Corporation; YAMI PEREZ, an individual and Agent of the Corporation; and DOES 1 through 25, inclusive,

Defendants.

Case Number 25AVCV01047

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 14, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a landlord-tenant case arising from the eviction of Plaintiffs Desiree Victoria Olzava (Olzava) and Nicolas Burgos (Burgos) (together Plaintiffs).

On August 20, 2025, Plaintiff filed their complaint against Defendants 316 E. Avenue Q-7, LLC (316), Maria Salazar (Salazar), and Yami Perez (Perez) (collectively Defendants), asserting seven causes of action for (1) violation of the Fair Employment and Housing Act, (2) violation of California Civil Code section 1946.2, (3) violation of the Unruh Civil Rights Act, (4) retaliatory eviction defense, (5) violation of California Code of Civil Procedure section 1161(2), (6) failure to return security deposit and wrongful withholding of funds, and (7) declaratory relief.

Specifically, Plaintiffs allege that on June 24, 2019, they entered into a lease agreement with 316 to occupy and rent residential real property located at 316 East Avenue, Q-7, #06, Palmdale, California 93550 (Property). (Compl., ¶ 13.) Plaintiffs allege that they endeavored to pay their monthly rent until Olzava became pregnant, had a high-risk pregnancy, was hospitalized on December 12, 2024, and gave birth to her child who was then hospitalized for almost two months, resulting in Plaintiffs falling behind on their payment of rent. (Compl., ¶ 14.) Plaintiffs communicated the circumstances to Defendants, but upon Olzava's child's discharge from the hospital, Plaintiffs returned to the Property to find an eviction notice. (Compl., ¶ 15.) Olzava purportedly received a \$5,000 check from public assistance to pay the back rent and the next month's rent, but 316 refused to accept the check and filed an eviction case against Plaintiffs for unlawful detainer. (Compl., ¶ 16.)

On December 5, 2024, 316's complaint for unlawful detainer was filed, and Plaintiffs complied with the demand to move out of the Property. (Compl., ¶¶ 17-18.)

On February 27, 2026, Defendants 316 and Perez filed their answer.

On March 2, 2026, a Case Management Conference was held, at which the Court and counsel discussed Plaintiffs' decision to file a new civil case rather than filing a cross-complaint in the prior unlawful detainer action between the parties. (Motion, p. 3:5-10.) Plaintiffs' counsel stated he would dismiss the present action and instead pursue the matter through a cross-complaint in the prior eviction case, and the Court dismissed the case without prejudice. (Ibid; Minute Order dated March 2, 2026.)

On March 10, 2026, Plaintiffs filed the present motion.

The motion is unopposed.

II. Legal Standard

Standard for Motion to Vacate Dismissal – A court may, upon just terms, relieve a party or attorney from a dismissal taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) The motion for relief shall be made within a reasonable time, but in no case exceeding six months after the dismissal was taken. (Ibid.)

No affidavit or declaration of merits is required of the moving party. (Ibid.) However, where a timely and proper motion is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, the court shall vacate any resulting dismissal against the attorney's client, unless the court finds that the dismissal was not caused by the attorney's mistake, inadvertence, surprise, or neglect. (Ibid.)

III. Discussion

Application – Plaintiffs move to vacate the dismissal and restore this matter to the Court's calendar pursuant to California Code of Civil Procedure section 473, subdivision (b), and the Court's inherent authority to correct orders entered as a result of mistake, inadvertence, surprise, or excusable neglect.

Plaintiffs state that the dismissal of this action occurred as a result of their counsel's misunderstanding during the CMC regarding the procedural posture of the parties' prior unlawful detainer action. (Motion, p. 5:16-19.) During the CMC, the Court questioned why Plaintiffs initiated a separate lawsuit against Defendants instead of filing a cross-complaint in the unlawful detainer action. (Id at p. 5:19-20.) In response to the Court's questioning, Plaintiffs' counsel represented that he would dismiss the present action and pursue the claims in the eviction matter if the Court so recommended, and the Court issued a minute order dismissing the action based upon this representation. (Id at p. 5:20-22.) The Court notes that while the March 2, 2026 minute order indicates the matter was to be dismissed, no order of dismissal was subsequently filed.

Plaintiffs argue that their agreement to dismiss the action was based on their counsel's incomplete understanding of the procedural status of the prior case, which, after further review following the CMC, counsel discovered had already been fully resolved through a settlement agreement, dismissed, and sealed. (Id at p. 5:24-27.) Because the unlawful detainer case has been dismissed and sealed, it is procedurally impossible for Plaintiffs to file a cross-complaint in that action without first reopening the matter, which would directly contradict the terms of the settlement between the parties and potentially constitute a breach of that agreement. (Motion, p. 6:1-4.) Thus, Plaintiffs claim the dismissal of the present action was not the result of inattention by Plaintiffs, but rather, occurred because of a procedural misunderstanding of counsel regarding the viability of filing a cross-complaint in a case that has been dismissed and sealed. (Motion, p. 6:5-9.)

The Court also acknowledges that Plaintiff's counsel, Michael Joel Kelly, has concurrently filed a sworn affidavit, attesting to his good faith statement in dismissing the present action being made upon his misunderstanding of the procedural posture of the unlawful detainer case. (Kelly Decl., ¶¶ 9-10, 13.)

The Court finds good causes exists to grant Plaintiff's motion to vacate dismissal, to the extent the matter even was dismissed. Plaintiffs and their counsel have attested the statements made at the CMC were the result of counsel's misunderstanding of the procedural posture of the unlawful detainer case. The Court finds that this representation was the result of mistake, inadvertence, surprise, or excusable neglect. Furthermore, Plaintiff's motion to vacate dismissal is unopposed, two of the three named Defendants have already appeared in this case, and the motion was filed within a reasonable time, only eight days after the dismissal of the action.

Accordingly, Plaintiff's motion to vacate dismissal and restore this matter to the Court's calendar is GRANTED.

IV. Conclusion

Plaintiffs Desiree Olzava's and Nicholas Burgos's Motion to Restore Case to the Court's Calendar and Vacate Dismissal is GRANTED.